IN THE HIGH COURT OF ORISSA AT CUTTACK

MACA No.538 of 2020 & MACA No.454 of 2020

(From the order dated 24th February, 2020 passed by the 3rd Motor Accident Claims Tribunal, Bhubaneswar, in M.A.C. Case No.3289 of 2014)

MACA No.538 of 2020

IFFICO-TOKIO General Insurance Co. Ltd. …… Appellant

Versus

Bishnu Priya Baral and others ……. Respondents

Advocate(s) appeared in this case:-

For Appellant	:	Mr.A.A.Khan, Advocate
For Respondents	:	Mr.P.K.Mishra, Advocate (For Respondent No.1 to 5)

AND

MACA No.454 of 2020

Bishnu Priya Baral and others …… Appellants

Versus

Manas Ranjan Swain and another ……. Respondents

Advocate(s) appeared in this case:-

For Appellants	:	Mr.P.K.Mishra, Advocate
For Respondents	:	Mr.A.A.Khan, Advocate (For Respondent No.2)

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CORAM : JUSTICE B.P. ROUTRAY

JUDGMENT
5th July, 2023

B.P. Routray,J.

1. Heard Mr.Khan, learned counsel for the Insurance Company i.e. IFFCO-TOKIO General Insurance Co. Ltd. and Mr.Mishra, learned counsel for the Claimants.

2. It is submitted that during pendency of the appeal claimant no.5, namely Basant Baral in MACA No.454 of 2020 and Respondent No.6 in MACA No.538 of 2020, died on 7th November 2021 and as such, it is prayed to delete his name since all other L.Rs are already on record.

3. Both the appeals arise out of the same judgment dated 24th February, 2020 passed by the learned 3rd M.A.C.T., Bhubaneswar in M.A.C. Case No.3289 of 2014, wherein compensation to tune of Rs.12,04,000/- along with interest @7% per annum has been granted from the date of filing of the claim application on account of death of the deceased in the motor vehicular accident dated 15th April, 2014.

4. It is submitted by Mr.Khan on behalf of the Insurer that legal liability for the deceased is not covered as per the terms of Insurance Policy and so, the Insurer is not liable to indemnify the compensation amount. It is further submitted that the deceased, namely, Trinath Baral was travelling in the offending Eichar Van bearing Registration No.OD-07B-7752 as an additional driver in addition to one Manas Chandra Jena, the driver of the said vehicle, who also died in the

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same accident. The Workmen Compensation Case was filed by the L.Rs of said Manas Chandra Jena and award was made in their favour.

5. On the other hand, MACA No.454 of 2020 has been filed by the claimants praying for enhancement of the compensation amount on the ground that no amount towards parental consortium has been granted to the children.

6. First dealing with the objection raised on behalf of the Insurer, it is relevant to refer the conditions of the policy. As per the copy of the policy under Ext.B, premium for legal liability, as per IMT 28, has been paid for three persons @Rs.50/- for one person. IMT 28 specifies legal liability for the driver, conductor and cleaner employed in connection with operation of the vehicle, in respect of personal injury or death.

7. In the instant case, the admitted position remains that the deceased Trinath Baral was employed as an additional driver in the offending vehicle along with other deceased, namely, Manas Chandra Jena. It also remains admitted that at the time of accident Manas Chandra Jena was on wheels and Trinath Baral was in the cabin. Admittedly, the Insurance Company has received premium of Rs.150 for three persons towards legal liability. The status of the deceased as an additional driver is admitted and he was inside the vehicle though Manas Chandra Jena was on the driver seat. No other person except two deceased persons was present in the vehicle. So as an employee of the [illegible] legal liability in respect of the deceased is covered in terms of the Insurance Policy since the premium for three persons employed in connection with the vehicle has been accepted. The vehicle is a goods

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carriage vehicle, where engagement of conductor and cleaner is insignificant. Moreover, engagement of additional driver in long-run goods carriage vehicles is very common. Therefore, the words "Conductor & Cleaner" specified in IMT 28 can be interpreted to include one additional driver employed in connection with the use of vehicle. Thus, the submissions made on behalf of the Insurer that the deceased cannot be treated either as a driver or conductor or cleaner is found unacceptable. Since the legal liability is within the permissible limit of three persons, the employment of the deceased as the additional driver in the vehicle cannot be said as beyond the liability under IMT 28. Hence, the finding of the Tribunal to saddle the liability on the Insurance Company is confirmed.

8. Next on the question of quantification of compensation amount, no reason is seen in favour of the Insurance Company to reduce the same, but on the other hand, it is seen that the Tribunal has failed to grant adequate amount towards general damages skipping the amount liable to be added towards loss of parental consortium. There are three minor children of the deceased, who are certainly entitled for parental consortium. Adding Rs.1,20,000/- on that count, the compensation amount is enhanced to Rs.13,24,000/-, payable along with interest @6% per annum.

9. In the result, the appeals are disposed of with a direction to the Insurer i.e. IFFCO-TOKIO General Insurance Co. Ltd. to deposit the compensation amount of Rs.13,24,000/-(Thirteen lakh twenty four thousand) along with interest @6% per annum from the date of filing of the claim application within a period of two months from today, which

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shall be disbursed in favour of the claimants, except claimant-Appellant No.5, in MACA No.454 of 2020. The direction for payment of penal interest @8% is waived.

10. The statutory deposit made by the Appellant in MACA No.538 of 2020 along with accrued interest thereon be refunded to him on proper application and on production of proof of deposit of the award amount before the learned Tribunal.

11. The copies of policy as produced by in course of hearing are kept on record.

12. Urgent certified copy of this order be granted on proper application.

(B.P. Routray)
Judge

HIGH COURT
सत्यमेव जयते
ORISSA

C.R.Biswal, Secy.

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